Research Services Agreement

Adaptive systems research - illustrative project

Reference: DRAFT - reference to be assigned | Effective date: [Effective date to be agreed]

Unsigned draft. Bracketed text identifies terms still to be agreed. Complete and review all legal, institutional, and award-specific terms before signature. Generation of this document does not execute an agreement.

1. Parties, purpose, and term

This Research Services Agreement (Agreement), reference DRAFT - reference to be assigned, is proposed between Example Research Entity (illustrative BIOracle contracting party) (Provider), acting for BIOracle, and Example Sponsor, Inc. (Sponsor), effective [Effective date to be agreed], subject to execution by both parties. The project is Adaptive systems research - illustrative project. The performance period is [Project start date to be agreed] through [Project end date to be agreed], unless extended or terminated under this Agreement.

Provider address and notices

[BIOracle legal / notice address to be agreed]
Attention: [BIOracle signatory name to be agreed], [BIOracle signatory title to be agreed]
Email: [BIOracle notice email to be agreed]

Sponsor address and notices

[Client or sponsor legal / notice address to be agreed]
Attention: [Client or sponsor signatory name to be agreed], [Client or sponsor signatory title to be agreed]
Email: [Client or sponsor notice email to be agreed]

Project lead

[Research / project lead to be agreed]

2. Scope, deliverables, and acceptance

Scope and exclusions

Develop and evaluate a research model of adaptation in a simulated population. Excludes clinical use, investment advice, production deployment, and collection of personal data.

Deliverables and formats

[Deliverables and formats to be agreed]

Milestones and due dates

[Milestones and due dates to be agreed]

Acceptance criteria and review process

[Acceptance criteria and review process to be agreed]

Sponsor inputs, access, and dependencies

[Client inputs, access, and dependencies to be agreed]

Provider shall perform the defined work with reasonable professional skill and care. Sponsor shall supply the agreed inputs and give timely, specific feedback. Neither party may unilaterally expand the scope or budget. Changes to scope, milestones, acceptance, or funding require a written amendment approved by authorized representatives and, where applicable, the funder. Acceptance is governed by the stated criteria; silence alone does not establish acceptance unless expressly agreed above.

3. Funding and budget allocations

The total project budget is [Total project budget to be agreed]. All amounts in this Agreement are in [Currency to be agreed]. [Tax treatment to be agreed in writing before signature.]

Graduate-student support

[Graduate-student support allocation to be agreed]

Investigator / research team

[Investigator / research-team allocation to be agreed]

Other direct project costs

[Other direct project costs to be agreed]

Administration / indirect costs

[Administration / indirect costs to be agreed]

These allocations establish the agreed project budget, not an immediate distribution of money or a guaranteed return. Provider shall maintain records supporting project charges and commitments. Reallocation requires written approval by the named budget approver and any additional approval required by Sponsor or the award. Graduate-student support shall not be reduced without a written amendment addressing existing commitments. No party is required to incur costs beyond the agreed funding ceiling without a written amendment.

4. Invoicing, approvals, and payment

Funding and invoice schedule

[Funding and invoice schedule to be agreed]

Sponsor shall pay valid, undisputed invoices within [Invoice payment deadline (calendar days) to be agreed] calendar days of receipt in accordance with the funding schedule and applicable award terms. Sponsor shall promptly identify disputed items and the reasons in writing; undisputed amounts remain due. The parties shall work in good faith to resolve discrepancies.

The budget approver is [Budget approver and role to be agreed]. Complete payment or purchase requests should be approved or returned with specific reasons within [Complete-request approval target (business days) to be agreed] business days. Once approval, required documentation, and available project funds are in place, Provider shall target payment processing within [Approved-payment processing target (business days) to be agreed] business days. These are administrative processing commitments, not

guarantees of bank settlement or funder payment timing. Business days exclude weekends and public holidays at the Provider's notice address.

Provider shall promptly notify Sponsor and affected project personnel of material funding or approval delays and propose a recovery plan. Neither an administrative target nor a late sponsor payment excuses wages or other amounts already owed under applicable law or separate appointments. Banking instructions shall be exchanged and verified separately; this Agreement contains no account credentials.

5. Graduate-student support and supervision

Academic supervisor

[Academic supervisor and role to be agreed]

Funded student roles, support, and payment plan

[Student roles, support, and payment plan to be agreed]

Provider shall reserve [Graduate-student support allocation to be agreed] within the budget for the stated graduate-student support and administer it through appropriate, lawful appointment or payment arrangements. The academic supervisor shall oversee the agreed research and mentorship responsibilities. This Agreement is not itself an employment contract, fellowship appointment, admission offer, or tuition waiver. Required individual arrangements must be documented before a student begins the funded work.

The parties shall review upcoming student commitments when changing project scope, funding, or duration. Student payments shall follow the stated plan and the controlling appointment, award, and legal requirements. Any wind-down must address earned compensation and existing obligations; this Agreement does not waive students’ rights or make students responsible for a sponsor’s unpaid invoices.

6. Intellectual property and permitted use

Each party retains ownership of intellectual property developed independently of the project or owned before it (Background IP). No Background IP transfers merely by being used in the project. Third-party and open-source materials remain subject to their own terms. Neither party may grant rights it does not hold.

[Ownership and licensing of project results to be agreed in writing before signature. No ownership transfer or project-results license is implied by this incomplete draft.]

Specific IP, background-material, and license terms

[IP, background materials, software, and license terms to be agreed]

7. Publication and academic use

Agreed publication, review, patent-delay, and thesis terms

[Publication and academic-use terms to be agreed]

The parties shall apply these terms consistently with confidentiality, third-party rights, academic commitments, and mandatory award requirements. No party may use the other’s name, marks, or implied

endorsement in publicity without prior written consent, except for a legally required disclosure or an expressly permitted acknowledgment.

8. Confidentiality and data

A party receiving information identified as confidential, or reasonably understood to be confidential in context, shall use it only for this project and protect it with reasonable care. Disclosure is limited to persons with a need to know and obligations of protection. These duties continue for [Confidentiality period after termination (years) to be agreed] years after termination; trade secrets remain protected for as long as required by applicable law.

These duties do not cover information demonstrably public without breach, already lawfully known, independently developed without use of the information, or lawfully received from another source without a duty of confidence. Legally compelled disclosure is permitted after notice where lawful and reasonable efforts to limit disclosure. These provisions do not restrict protected reporting or other non-waivable rights.

Data handling, security, and project-specific requirements

[Data handling and security obligations to be agreed]

Neither party shall provide personal, sensitive, regulated, or restricted data beyond the agreed scope. Any required data-processing, ethics, export-control, or other authorization must be in place before the affected work begins. On completion or termination, information shall be returned, retained, or deleted as agreed above and as required by law or the award, with continuing protection for lawful retained copies.

9. Research uncertainty and responsibilities

Research outcomes are uncertain. Provider does not guarantee a particular scientific finding, commercial result, regulatory approval, publication, or future performance. Provider remains responsible for the agreed standard of professional care and deliverables. Sponsor remains responsible for decisions made using the results and for uses outside the agreed scope. Except as expressly provided or required by law, no other warranty is given.

10. Liability

To the extent permitted by applicable law and mandatory award conditions, each party’s aggregate liability arising from this Agreement shall not exceed [Agreed aggregate liability cap to be agreed]. Neither party shall be liable to the other for indirect or consequential loss, including lost profits, to the extent such exclusion is lawful. These limits do not apply to fraud, willful misconduct, or liability that cannot lawfully be limited. They do not excuse amounts properly due for performed work or permit withholding earned student or employee compensation. No separate indemnity is created unless expressly set out in the additional terms.

11. Termination and closeout

Either party may terminate for convenience on [Termination-for-convenience notice (calendar days) to be agreed] calendar days’ written notice, subject to controlling award conditions. For a material breach, the non-breaching party may terminate if the breach is not cured within [Material-breach cure period (calendar days) to be agreed] calendar days after written notice describing it. The parties shall promptly

discuss a good-faith cure plan where a breach cannot reasonably be cured within that period. Work prohibited by law must stop without waiting for a cure period.

On termination, Provider shall stop new avoidable commitments, protect project records, and provide an accounting of work performed and commitments properly incurred. Sponsor shall pay amounts properly due for work performed and authorized non-cancelable commitments, subject to the funding ceiling and award conditions. Provider shall reconcile advances and return unearned or disallowed balances as required. The parties shall agree the handover of paid-for deliverables and a responsible student-support wind-down. Accrued payment, confidentiality, IP, data, dispute, and other provisions intended to survive remain effective.

12. Governing law, disputes, and notices

Governing law

[Governing law (country and state / region) to be agreed]

Agreed courts / dispute venue

[Courts / dispute venue to be agreed]

The parties shall first attempt to resolve disputes through good-faith discussion between authorized representatives. If unresolved, either party may seek relief in the agreed courts, subject to applicable mandatory law. Nothing prevents urgent relief where legally available. Formal notices shall be sent to the addresses or emails identified above, with evidence of delivery. Changes to notice details must be communicated in writing.

13. General provisions

The parties act as independent contractors; this Agreement does not create a partnership, joint venture, agency, or employment relationship between the parties. Neither party may bind the other without written authority. Neither party may assign this Agreement without the other’s written consent, except as required by law. Subcontracting does not relieve Provider of its responsibilities and remains subject to award approval requirements.

A party affected by events beyond its reasonable control shall promptly notify the other, mitigate their effects, and agree appropriate schedule adjustments. This does not excuse amounts already owed. Any amendment or waiver must be in writing by authorized representatives. Failure to enforce a term is not a continuing waiver. If a term is unenforceable, the remaining terms continue to the extent legally possible.

This Agreement and its expressly identified incorporated documents constitute the parties’ agreement on this project. Mandatory law takes precedence; express negotiated amendments prevail over inconsistent standard template language. The parties may sign in counterparts, including electronic signatures where legally permitted. Entering a name in the generator is not a signature and does not execute this Agreement.

14. Additional negotiated terms

No additional negotiated terms supplied. Any additions must be agreed in writing before signature.

Execution by authorized representatives

By signing below, each signatory represents that they are authorized to bind the named entity.

Provider: Example Research Entity (illustrative BIOracle contracting party)

Authorized representative: [BIOracle signatory name to be agreed]
Title: [BIOracle signatory title to be agreed]

Signature: _____ Date: _____

Sponsor: Example Sponsor, Inc.

Authorized representative: [Client or sponsor signatory name to be agreed]
Title: [Client or sponsor signatory title to be agreed]

Signature: _____ Date: _____